

Agreeing Needs and Making a Formal Record



1. Using this Procedure

This procedure should be used to reach an agreement about needs after having a skilled conversation.

It should be used by all services apart from reablement. If you work in the reablement service see: [Agreeing Needs, Making a Formal Record and Next Steps \(Reablement\)](#).

2. Agreeing Needs

2.1 Agreeing needs through the skilled conversation

Throughout the process of information gathering to establish needs you should talk to the person (or their representative)/carer and others about the level of need apparent, endeavouring to reach an agreement about this as the process progresses.

See: [Talking about Needs](#).

2.2 The responsibility for agreeing needs

Whether or not an agreement about needs is reached the Local Authority is responsible for making the final decision about the level of need that a person/carer has in each area of need identified. As such this is your responsibility as you are the Local Authority's representative.

2.3 Considerations when agreeing need

When determining the level of need you **must give regard to**:

- a. The views of the person/carer about the level of need;
- b. The impact of the need on the person's /carer's Wellbeing;
- c. Where needs relate to a person with Care and Support needs, the views of any carer about the level of need; and
- d. The views of anyone else consulted or involved in the assessment process.

The decision that you make about the level of need must be evidence based and robust. This means you must be able to demonstrate the information that you have used to reach a decision about need if challenged.

The decision you reach may be in line with the views of the person/carer (and others) but equally it may not be if the evidence does not support that judgement. This is appropriate as long as you have a clear rationale for your decision and have given regard to the person's/carer's views, their Wellbeing and the views of others.

Example:

Jane is of the view that she is not able to mobilise around her home and needs full support. Her Occupational Therapist has provided Jane with a range of aids that she can use to stabilise herself around her home and you have seen Jane use them effectively. When determining the level of need you make a decision that Jane is able to mobilise around her home with the support of aids because you know this to be true, even though it does not reflect Jane's own views.

Example:

Annie tells you that she has no difficulty maintaining relationships with her family. However during the assessment you saw several ABC behaviour records that evidenced as a result of her mental health illness Annie become verbally angry with her parents several times a month, with her advocate regularly liaising between them afterwards to help de-escalate the situation. When determining the level of need you make a decision that Annie can behave in ways that her parents find challenging and has the need for regular support to maintain the relationships with her parents, and without this there is evidence that the relationship could break down.

If you are unclear about the level of need a person/carer has you should consider the benefit in gathering any additional information or consulting with any other person. If you remain unclear about the level of need you should seek advice from your line manager about how best to proceed.

3. Managing Disagreement about the Level of Need

There may be times when the person/carer, their representative or another person disagrees with the decision you have made about the level of need the person has.

In this situation you should be open to reviewing the available evidence and your rationale to ensure that the decision you have made is robust. You should be open and transparent about the evidence sources you have used and take steps to try and support the person to understand the decision you have made.

Where ongoing disagreement persists you should:

- a. Seek the support and advice of your line manager as required;
- b. Make a record of any difference of opinion in the formal record of assessment;
- c. Ensure the evidence upon which you have based your decision is robust;
- d. Make sure that the regard you have given to the views of the person/carer (and others) and the impact on their Wellbeing is clear; and
- e. Make proportionate records of any conversations you have had to try and resolve the differences.

You must also make the person (or their representative)/carer aware of their right to complain about the decision that has been made.

4. Making a Formal Record of Needs

You are responsible for establishing the current assessment framework used by the Local Authority for recording needs. If you are unclear you should speak to your line manager before proceeding to make a formal record of needs.

4.1 The timeframe for making a record

All recording should be made in line with local requirements.

The Care Act does not specify a timeframe for making a formal record of a needs assessment only that this should be done in a timely way.

Timely recording will:

- a. Reduce the likelihood of inaccuracies;
- b. Prevent any unnecessary delays for the person/carer; and
- c. Ensure that the duty to meet eligible needs is met as close to the need being identified as possible.

If the timeframe for assessment that you use leads to inaccuracies or a delay in meeting needs then it is not timely.

4.2 What should be included in the record

The following information must be clearly recorded in all cases:

- a. The identified areas of need that the person/carer has;
- b. The nature of needs that the person/carer has in each area where needs exist;
- c. The views of the person/carer, any carer and any other person in relation to need (and how these have been regarded);
- d. The views of the person/carer, any carer and any other person in relation to how need impact on Wellbeing (and how these have been regarded);

- e. The evidence that has been used to reach a determination about the level of need;
- f. How the impact of the decision on Wellbeing has been considered;
- g. A proportionate record of the options explored to meet needs and achieve outcomes, clearly demonstrating a strengths based approach;
- h. A proportionate record of conversations about risk, clearly demonstrating a positive approach to risk;
- i. A proportionate record of any general information and advice that has been given about adult Care and Support;
- j. A proportionate record of the preventive measures that have been explored; and
- k. A proportionate record of any actions and next steps agreed (for example Care and Support planning or a carer assessment).

The following information should also be clearly recorded where relevant:

- a. The safeguarding concerns raised and action taken;
- b. The Deprivation of Liberty concerns raised and action taken;
- c. A proportionate record of specific information and advice given (for example around finances or Lasting Power of Attorneys);
- d. The evidence that has been used to demonstrate the level of fluctuating need; and
- e. Any difference in views about need that have occurred.

4.3 Providing a copy to the person/carers

Following the assessment process the person/carers **must** be given a written record of their assessment.

If the assessment record has a dual function as a record of eligibility it may be prudent to establish and record eligibility before providing a copy, although you should still provide information to the person/carers about the level of need as soon as this is known.

It is important that the person/carers understands their assessment and the outcome of it. To this end it should be provided in a format that is accessible to them.

If the assessment has been provided in a format that you know or suspect the person/carer will not be able to understand you should:

- a. Consider any steps that you can take to support them to understand it (for example talking through the assessment over the telephone or summarising it in a simpler format); and
- b. Consider the duty to make an Independent Advocate available.

If an advocate is already involved they should be informed when the assessment has been provided to the person/carer so that they can support them to understand it.

4.4 Providing a copy to others

Where the assessment was carried out jointly with another organisation to avoid duplication (for example housing or health) a copy of the assessment must be made available to the other person that carried it out with you.

In the case of a needs assessment, a copy should normally be shared in full with any carer unless the person has capacity and has asked you not to share the assessment, or to share only part of the assessment. In this case you will need to discuss and agree which elements of the assessment are to be shared having regard for confidentiality.

In all other cases a copy of the record can only be shared with the person's/carer's consent (or in the best interests of a person with Care and Support needs if they lack capacity to consent).

A copy must also be shared with anyone that the person/carer requests you share a copy with, even if they were not involved in the assessment itself.

Concerns about a request

You must provide a copy of the assessment to anyone that the person/carer requests you to unless:

- a. A person with Care and Support needs lacks capacity and you make a decision that sharing would not be in their best interests; or
- b. You are concerned that doing so could put the person with Care and Support needs (or another vulnerable adult or child) at risk of abuse or neglect.

If this situation arises you should seek advice from your line manager and decide whether:

- a. To share the record in full as requested;
- b. To share the record partially, omitting sections where information could put a person with Care and Support needs at risk; or
- c. To decline to provide a copy of the record (although the person/carer can of course still choose to make a copy available from their own record).

4.5 Amending a record of need

Sometimes the person (or their representative)/carer may ask for amendments to be made to the assessment. For example:

- a. They feel that there is information missing; or
- b. They feel that the record is a misinterpretation of something that was said or agreed.

In this case you should:

- a. Consider the request;
- b. If the person/carer whose assessment it is has not made the request, consult with them (or their representative); and
- c. Review any evidence or information you have which may support or refute the request.

You should not make the amendment regardless of the existence of evidence and a rationale for doing so. If you reach a decision not to amend the record you should be clear about your reasons for not doing so, and you should make the person/carer aware of their right to complain about your decision.

If a decision is made to make the amendments you should proceed to do so. Where doing so results in 2 versions of the same assessment being available on the system it must be clear which the amended version is.

The amended record should be circulated to the same people as the original record, unless the person/carer requests otherwise or there is evidence that doing so would put the person (or another vulnerable adult or child) at risk of harm or abuse.

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